

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
DYLLAN PEARSON,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
OFFICER DANIEL GUKELBERGER, TAX ID # 948350
SHIELD NUMBER 26809,
in his individual and official capacity and JOHN DOE
NEW YORK POLICE OFFICERS 1-3, in their individual
and official capacities.Defendants.
-----X

SUMMONS

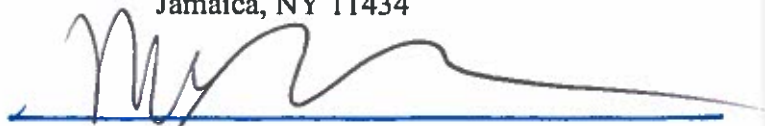
Index No.:

Date Purchased:
April 12, 2017Plaintiff designates:
place of trial.

Queens County as the

Basis for venue: Place of
incident site.

YOU ARE HEREBY SUMMONED to answer the complaint in this action, to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 12, 2017Yours, etc.,
MARNI F. SCHLESINGER, ESQ.
Apicella & Schlesinger
Attorneys for Plaintiff
1454 St. Nicholas Avenue
New York, New York 10033
(212) 568-4265To: The City of New York
100 Church Street
New York, New York 10007To: Detective Specialist Daniel Gukelberger
103rd Police Precinct
168-02 91st Avenue
Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DYLLAN PEARSON,

Plaintiffs, VERIFIED
-against- COMPLAINT

THE CITY OF NEW YORK, NEW YORK POLICE
OFFICER DANIEL GUKELBERGER, TAX ID # 948350,
SHIELD NUMBER 26809,
in his individual and official capacity and JOHN DOE
NEW YORK POLICE OFFICERS 1-3, in their individual
and official capacities,

Defendants.
----- X

Plaintiff, Dyllan Pearson, by and through his attorney, Marni F. Schlesinger, an attorney at
the law firm of Apicella & Schlesinger, complaining of the defendants herein, upon information and
belief respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, Plaintiff was a resident of the County
of Queens, City and State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK was and is
a municipal corporation, duly organized and existing under by virtue of the laws of the
state of New York.
3. That at al times hereinafter mentioned, the defendants, POLICE OFFICER DANIEL
GUKELBERGER, TAX ID # 948350, SHIELD NUMBER 26809, and JOHN DOE
NEW YORK POLICE OFFICERS 1-3, were and are still employed with the New York
City Police Department.
4. That at all times herein mentioned, the Defendant officers were acting within the scope

and course of their employment with the New York City Police Department, and under color of state law.

5. That prior to the institution of this action, a notice of claim was duly served upon and filed with the city on behalf of plaintiff on April 15, 2016.
6. That on or about July 5, 2016, a hearing was held by the City pursuant to municipal law 50H.
7. That at all times herein mentioned, the defendant officer was acting within the scope and course of his employment with the New York City Police Department and under color of state law.
8. That at all times herein mentioned, all actions of the officers alleged herein were done within the scope and course of their employment with the New York City Police Department, and under color of the state law.
9. That all causes of action pleaded herein fall within one or more of the exceptions set forth in the New York Civil Practice Law & Rules 1602 with respect to join and several liability.
10. That on January 22, 2015, at approximately 9:00 p.m., Plaintiff was sitting in a car at 101st Avenue and the Van Wyck Expressway, City and State of New York, with other occupants when Police Officer Daniel Gukelberger, TAX ID # 948350, Shield Number 26809, came up to Plaintiff's vehicle and without warning, did point his gun at Plaintiff.
13. That Police Officer Daniel Gukelberger, TAX ID # 948350, Shield Number 26809, was wearing plain clothing and did not identify himself as a police officer.
14. That plaintiff, in fear for his life, liberty and safety drove away and was stopped by a police vehicle with flashing lights.

15. That a short while later, Plaintiff was pulled over at or about 101st Avenue and Remington Street, County of Queens, City and State of New York, at which time all occupants of Plaintiff's vehicle exited Plaintiff's vehicle, and Plaintiff was arrested.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE FOURTH, FIFTH, AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE USE OF EXCESSIVE FORCE AND ASSAULT AND BATTERY UPON PLAINTIFF

16. Plaintiff repeats and realleges each and every allegation contained herein as though set forth at length herein numbered 1 through 15.
17. That on or about January 22, 2015, at approximately 9:00 p.m., Defendants Police Officer Daniel Gukelberger, TAX ID # 948350, Shield Number 26809, and John Doe's 1-3 , were and are still employed in their capacity as police officers, wrongfully stopped, handcuffed and seized the plaintiff and arrested the plaintiff.
18. At no time did Defendants have legal cause to point a gun at Plaintiff while Plaintiff was lawfully stopped in his vehicle.
19. At no point did Defendants have legal cause to stop and then chase Plaintiff while in an automobile on the corner of the Van Wyck Expressway and 101st Avenue, County of Queens, City and State of New York.
20. At no point did Defendants have legal cause to stop and then chase Plaintiff while in an automobile on the corner of Remington and 101st Avenue, County of Queens, City and State of New York.
21. Plaintiff was suddenly and without warning unlawfully, stopped, while a Police Officer from the New York City Police Department had his gun drawn at Plaintiff. Police Officer Daniel Gukelburger, TAX ID # 948350, Shield Number 26809, never showed Plaintiff

his police badge.

22. As a result of the aforementioned actions, Defendants Police Officer Daniel Gukelberger, TAX ID # 948350, Shield Number 26809 and John Doe's 1-3 was and is still employed with the New York City Police Department, deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.
23. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force and assault and battery against their persons secured by the Constitution and Laws of the United States of American and Fifth and Fourteenth Amendments and under the laws of New York State.
24. The aforementioned acts of Defendants were intentional, wilful and malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's rights.
25. That by reason of the assault, battery and excessive force inflicted upon the Plaintiff, was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss and was otherwise damaged.
26. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § § 1981, 1983, 1985, 1986, and under New York State Law.

**SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY MONELL CLAIM
PURSUANT TO 42 USC 1983 AND RESPONDEAT SUPERIOR**

27. Plaintiff repeats and realleges each and every allegation contained here as if fully set forth at length herein numbered 1thoguh 26.

28. All of the acts and omissions by the individual Defendants described above were carried out to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in the full knowledge, consent and cooperation and under the supervisory authority of Defendant CITY.
29. Defendant CITY, and its agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful act and/or failed to prevent or stop those acts and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.
30. Defendants assaulted, battered, and victimized Plaintiff in the absence of any probable cause or reasonableness, notwithstanding their knowledge that said use of force would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.
31. At all times mentioned herein, said individual defendants were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
32. On or about January 22, 2015, Defendants did seize, assault, and commit a battery and grab the person of the Plaintiff during the arrest process in an unlawful and excessive manner.
33. The Plaintiff was unlawfully assaulted, battered, and victimized without the Defendants' possessing probable cause to do so.
34. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.
 - a. Freedom from assault to his person.
 - b. Freedom from battery to his person.

c. Freedom from the use of excessive force during the arrest process.

35. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.
36. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of use of force, especially when its police officers do not have cause to use force, especially as here, where Police Officer Daniel Gukelburger, TAX ID # 948350, pointed his gun and Plaintiff without identifying himself
37. That Defendants herein, their agents, servants, and employees, motivated in part by racial and/or ethnic animus conspired to deprive Plaintiff of his federal civil and constitutional rights in violation of 42 USC 1985.

THIRD CAUSE OF ACTION FOR FALSE ARREST

38. Plaintiff repeats and realleges each and every allegation contained here as if fully set forth at length herein numbered 1 through 37.
39. That on January 22, 2015, at approximately 9:00 p.m., on the corner of the Van Wyck Expressway and 101st Street, County of Queens, City and State of New York, Defendants, their agents, servants and employees, including but not limited to POLICE OFFICER DANIEL GUKELBERGER, TAX ID # 948350, SHIELD NUMBER 26809, and and JOHN DOE NEW YORK POLICE OFFICERS 1-3, wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds thereof.
40. That the aforesaid arrest, detention and imprisonment continued at the 103rd Precinct and elsewhere.
41. That the said arrest, detention and imprisonment was caused by the City, its agents, servants and employees, including but not limited to the police officers without a warrant

and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

42. That the city, its agents and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged .
43. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss and was otherwise damaged.

FOURTH CAUSE OF ACTION

44. Plaintiff repeats and realleges each and every allegation contained here as if fully set forth at length herein numbered 1 through 43.
45. That immediately prior to and during the course of his arrest and detention, plaintiff was and battered by said police officers.
46. That the reason of the aforesaid, plaintiff sustained psychological injuries, endured and will endure pain and suffering and loss of enjoyment of life and economic loss, and was otherwise damaged.

FIFTH CAUSE OF ACTION FOR NEGLIGENT HIRING AND RETENTION OF DEFENDANTS

47. Plaintiff repeats and realleges each and every allegation contained here as if fully set forth at length herein numbered 1 through 46.
48. That the aforesaid actions, and resulting injuries to plaintiff were due to the negligence of the City in the hiring, retention, and training of its employees, including the police

officers involved in the arrest, assault and battery, and malicious prosecution of the plaintiff.

SIXTH CAUSE OF ACTION

49. Plaintiff repeats and realleges each and every allegation contained here as if fully set forth at length herein numbered 1 through 48.
50. That Plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the state of New York, and his rights pursuant to 42 USC § 1983 by those who, under color of statute or regulation of a state, caused plaintiff to be so deprived.
51. That the aforesaid actions by the POLICE OFFICER DANIEL GUKELBERGER, TAX ID # 948350, SHIELD NUMBER 26809, and and JOHN DOE NEW YORK POLICE OFFICERS 1-3, were done pursuant to an official municipal policy or custom of the city, which policy involved the indiscriminate detention, interrogation, intimidation, and prosecution of individuals who were not engaged in criminal conduct and for the purposes of thwarting the fair administration of justice.
52. That defendants herein, their agents, servants and employees motivated in part by racial/and or ethnic animus, conspired to deprive plaintiff of his federal civil and constitutional rights in violation of 42 USC § 1985.

WHEREFORE, Plaintiff demands judgment against defendants, and each of them on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the

trier of fact, together with attorney's fees and together with costs and disbursements.

Dated: New York, New York
Dated: April 12, 2017

Yours, etc.

MARNI F. SCHLESINGER, ESQ.
Apicella & Schlesinger
Attorney for Plaintiff
1454 St. Nicholas Avenue
New York, New York 10033
MS@Schleslaw.com
(212) 568-4245

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STATE OF NEW YORK, COUNTY OF

SS.:

I, the undersigned, an attorney admitted to practice in the courts of New York State,

☐ **Certification by Attorney** certify that the within
has been compared by me with the original and found to be a true and complete copy.

☐ **Attorney's Affirmation** state that I am
the attorney(s) of record for
action; I have read the foregoing
the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by

in the within

and know the contents thereof;

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated:

STATE OF NEW YORK, COUNTY OF Queen SS.:

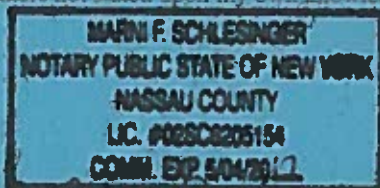
The name signed must be printed beneath

I, the undersigned, being duly sworn, depose and say: I am Dyllan Pearson

☒ **Individual Verification** in the action; I have read the foregoing Summons & Complaint
and know the contents thereof; the same is true to my own knowledge, except

☐ **Corporate Verification** the _____ of _____
a _____ corporation and a party in the within action; I have read the foregoing
and know the contents thereof; and the same is true to my own knowledge,
except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. This
verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:



Sworn to before me on the
12th day of
April, 2017

Dyllan Pearson
The name signed must be printed beneath
DYLLAN PEARSON

STATE OF NEW YORK, COUNTY OF

SS.:

(If more than one box is checked—indicate after names type of service used.)

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On _____ I served the within _____

☐ **Service by Mail** by mailing a copy to each of the following persons at the last known address set forth after each name below.

☐ **Personal Service on Individual** by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served to be the person mentioned and described in said papers as a party therein:

☐ **Service by Electronic Means** by transmitting a copy to the following persons by ☐ FAX at the telephone number set forth after each name below ☐ E-MAIL at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a copy to the address set forth after each name.

☐ **Overnight Delivery Service** by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each name below.

Sworn to before me on

The name signed must be printed beneath